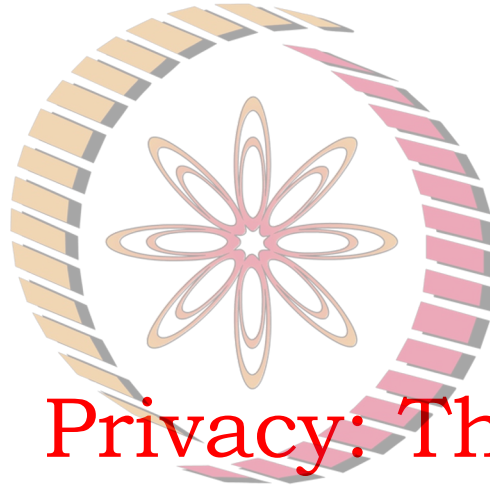


Cyber Security and Privacy

MS6880



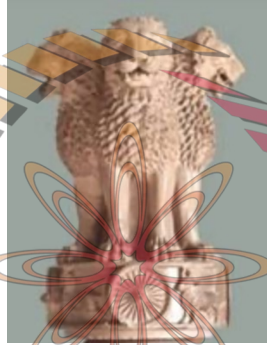
Privacy: The Indian way

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"No person in the country may be deprived of his life or personal liberty except according to procedure established by law"

(Article 21, Constitution of India)

Privacy in India: A quick glance

- ▶ British enacts the Indian Telegraph Act 1885
 - ▶ Post the first war of independence (Indian mutiny), 1857–59
 - ▶ Provided interceptive powers to government
- ▶ Post independence, Indian Govt instituted Post and Telegraph (P&T), a department under its control
 - ▶ Article 21 and the telegraph act continued together
- ▶ Telegraph act amended in 1972 to include the threat of "incitement of offences"
 - ▶ Wire tapping during emergency period legitimized by the amendment
- ▶ In 2018 SC declares privacy as a fundamental right
 - ▶ Context: Aadhar act and government as a major data fiduciary
- ▶ Government proposes Personal Data Protection (PDP) Bill alongside GDPR; drops it in 2022
 - ▶ Proposes Digital Personal Data Protection (DPDP, 2022) Bill

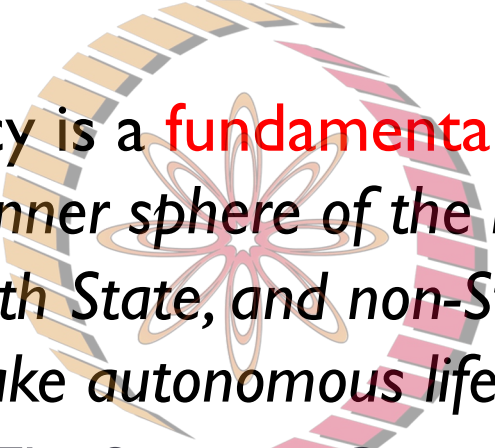


In 2012, K S Puttaswamy, retired judge of Karnataka High Court challenged Aadhaar in Supreme court through a writ petition

Right to Privacy: 91-year-old retd Justice KS Puttaswamy is the face behind legal history

Right to Privacy: “During discussions with some of my friends, I realised that the Aadhaar scheme was going to be implemented without the law being discussed in Parliament. As a former judge, I felt the executive action was not right. I filed the petition because I felt that my right was affected,” he said.

The right to be

- 
- ▶ The right to privacy is a **fundamental right**. It is a right which *protects the inner sphere of the individual from interference from both State, and non-State actors and allows the individuals to make autonomous life choices.*

The Supreme Court, August 24, 2017

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- ▶ Then how can the government ask me to share my biometric data to receive government benefits?
-

Nothing absolute

- ▶ "no person in the country may be deprived of his life or personal liberty **except according to procedure established by law**" (Article 21)
- ▶ An invasion of life or personal liberty must meet the three-fold requirement of (i) **legality**, which postulates the existence of law; (ii) **need**, defined in terms of a legitimate state aim; and (iii) **proportionality** which ensures a rational nexus between the objects and the means adopted to achieve them;



Pegasus case | No absolute power for state to snoop into 'sacred private space' of individuals, says Supreme Court

KRISHNADAS RAJAGOPAL

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- ▶ Is Aadhar according to the procedure established by the law?



In the beginning

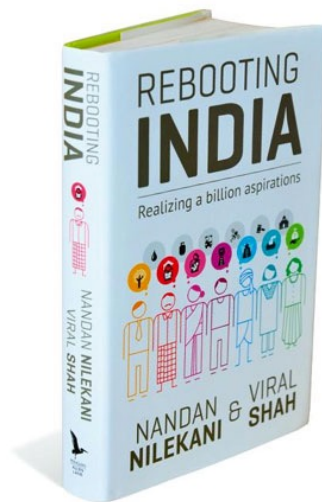
▶ Identity problem

- ▶ Obtaining an identity in India required one to produce another identity
- ▶ 59% of Indians don't have a birth certificate
- ▶ ID prohibited the poor from access to formal banking system
- ▶ Enabled corruption:
 - ▶ When government gives 1 rupee, only 17 paise reaches the intended recipient (Rajiv Gandhi)
 - ▶ Leakage of benefits
- ▶ The Aadhaar Act, 2016 states, "Every resident shall be **entitled to obtain an aadhaar** number by submitting his demographic information and biometric information by undergoing the process of enrolment."

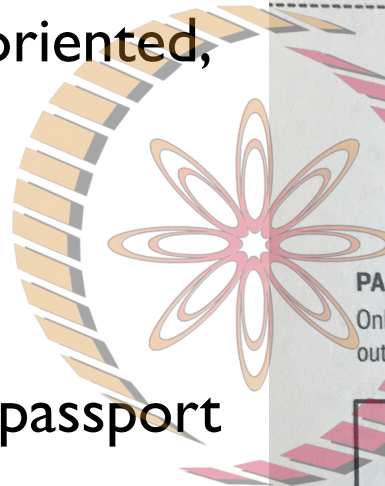
The Act further defines residency as, "An individual who has resided in India for a period or periods amounting in all to 182 days or more in the 12 months immediately preceding the date of application for enrolment."

Rebooting India*

- ▶ Other IDs function oriented, not universal
- ▶ Aadhar not specific to a function
- ▶ Not a substitute for passport

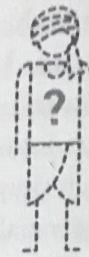


*Nandan Nilekani and Viral Shah, “Rebooting India”, Penguin, 2015



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THE ISSUE OF IDENTITY



Most government-provided IDs are function-driven and crafted for an administrative purpose

PASSPORT

Only for citizens to travel outside the country

DRIVER'S LICENCE

Only for vehicle drivers 18 years and over. Limited validity

PAN CARD

Only for taxpayers

VOTER ID

Only for citizens 18 years and over

RATION CARD

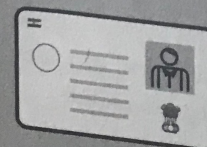
Only for citizens who qualify for subsidies

BPL CARD

Only for citizens falling below a certain level of income

NREGA CARD

Only meant for rural employment scheme



AADHAAR CARD

Primary function is to provide identification of the individual

- Universal • Digital
- Secure verification
- Multiple applications like e-KYC, Subsidies, Pensions
- Can be used for...

12 digits

- ▶ “Digital inclusion”
- ▶ World’s largest id system
- ▶ Uniqueness ensured through 700 mn bn comparisons
- ▶ Built as a platform



Being Machiavellian

It must be considered that there is nothing more difficult to carry out, nor more doubtful of success, nor more dangerous to handle, than to initiate a new order of things

--- Niccolo Machiavelli, The prince (1532)

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(~ Chanakya, Arthashastra)

Aadhaar security for privacy

‘Aadhaar biometric data is 100% secure’

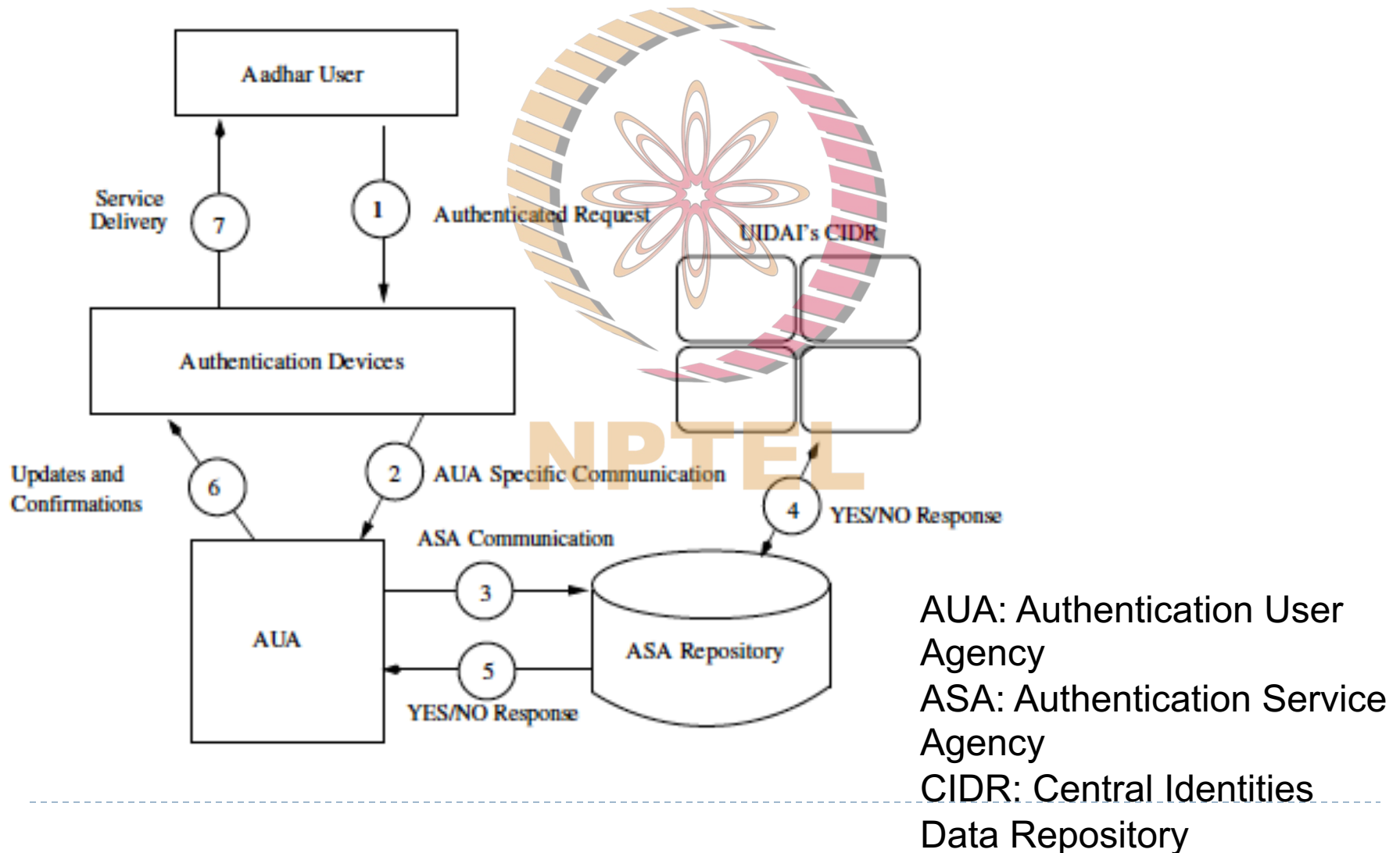
“There is “ten foot wall” to protect Aadhaar data!”

—India’s cybersecurity chief, Gulshan Rai





Aadhar data architecture



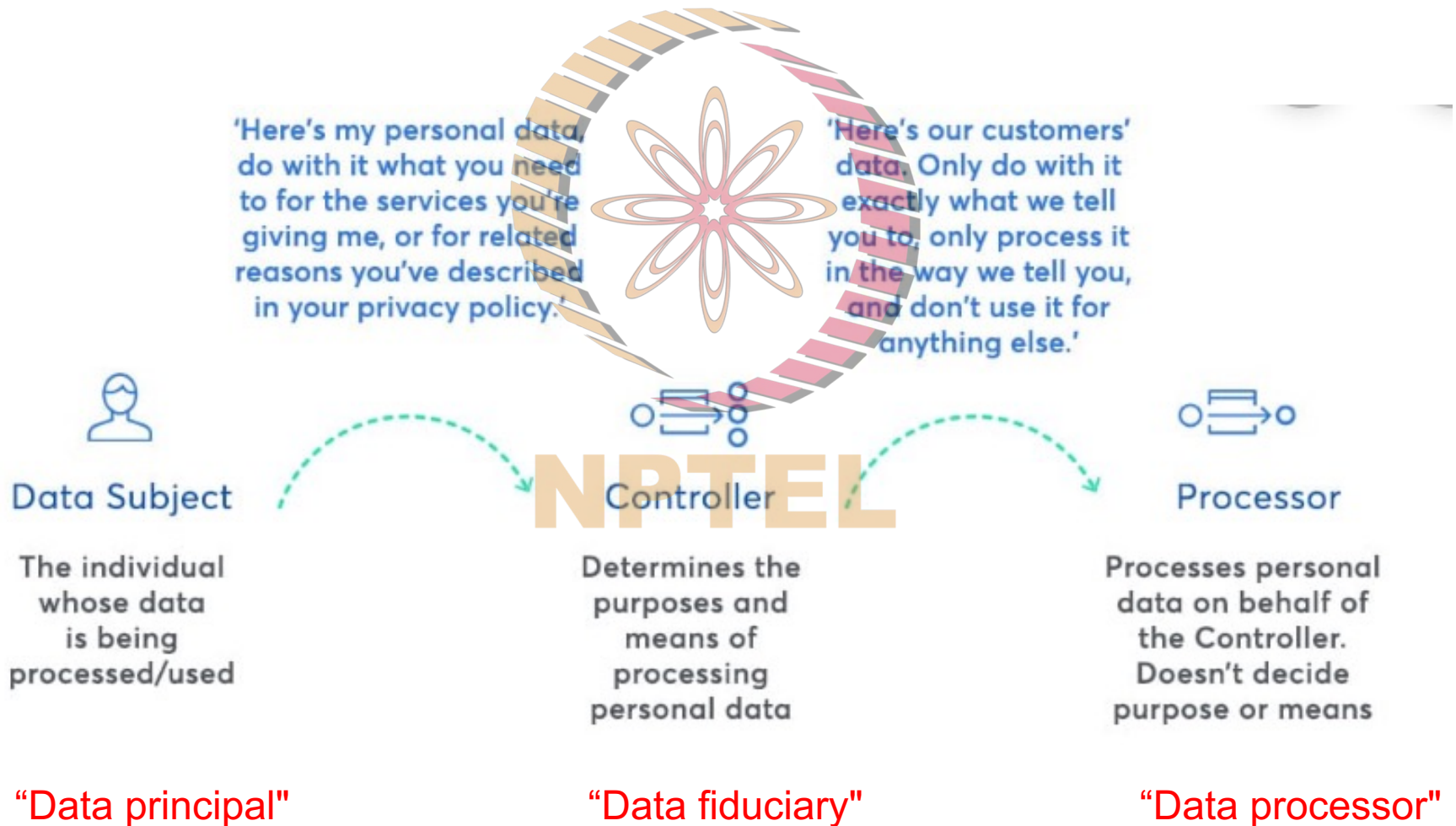
Criticisms

- ▶ The government made Aadhaar essential (and then relaxed) for all services including tax returns, opening bank accounts and securing loans, pensions and cash transfers for those entitled to welfare schemes.
 - ▶ Critics say the Aadhaar identity card links enough data to allow profiling because it creates a **comprehensive profile** of a person's spending habits, their friends and acquaintances, the property they own, and a trove of other information.
 - ▶ There are also fears the data could be misused by a government that argues Indians have no right to privacy.
 - ▶ Limitations of biometric, bald ridges
-

The Personal Data Protection (PDP) Bill

- ▶ MeitY Commissioned Justice B N Sri Krishna Commission to propose a bill on personal data protection in July 2017
 - ▶ TOR: “To unlock the data economy, while keeping data of citizens secure and protected.”
 - ▶ Recognizes the transformative potential of the digital economy to improve lives in India and elsewhere
 - ▶ The committee submitted the draft Personal Data Protection (PDP) Bill in July 2018
 - ▶ Cleared by the Union Cabinet Dec 2019
 - ▶ Parliament referred it to a JPC in Dec 2019
 - ▶ Government scraps the bill and proposes an alternative bill (2022)
-

Stakeholders of personal data



Personal Data Protection Bill can turn India into 'Orwellian State': Justice BN Srikrishna

Synopsis

The man who led the committee says Data Protection Bill could potentially ensure no oversight on govt agencies.



"They have removed the safeguards. That is most dangerous," Srikrishna told ET.

BENGALURU: Justice BN Srikrishna, who led the committee that drafted the Personal Data Protection Bill (PDP), said the bill placed in Parliament on Wednesday, which allows the Centre to exempt its agencies from some or all provisions, is "dangerous" and can turn India into an "Orwellian State".

The government could exempt its agencies from rules that govern processing of personal data citing national security, public order and friendly relations with foreign states. However, this will be subject to procedures, safeguards and oversight mechanism of the respective agency.

CHAPTER VIII

EXEMPTIONS

20

35. Where the Central Government is satisfied that it is necessary or expedient—

Power of Central Government to exempt any agency of Government from application of Act.

DPDP Bill, 2022

- ▶ The latest draft of the data protection law — the Digital Personal Data Protection Bill, 2022 (DPDP Bill, 2022) — has now been made open for public comments.
- ▶ Out of the 22 clauses in the DPDP Bill, the Central government has been provided with rule making power in around 14 clauses.

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A quick comparison

- ▶ Detailed PDP (*14 chapters, 56 pages*) vs concise DPDP (*6 chapters, 24 pages*)
 - ▶ Addresses only personally identifiable data; non-personal data not addressed
 - ▶ The right to be forgotten now under the right to erasure
 - ▶ Right to be forgotten covers consent for data sharing
 - ▶ Penalties much higher in DPDP, cap at ₹500 crore; penalty applies to data principals also
 - ▶ Dropped three tier classification of data in PDP (*personal data, critical personal data and sensitive personal data*)
 - ▶ In PDP the **last two must be stored in India**
-

Data localization

- ▶ Data localization means data about the citizens of a country to be collected, processed, and/or stored inside the country, often before being transferred internationally. Also known as data residency/data sovereignty.
- ▶ How does this affect different stakeholders?

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